# NATIONAL COMPANY LAW TRIBUNAL
# NEW DELHI BENCH, COURT-II

**COMPANY PETITION NO. (CAA)-92(ND)/2022**
**CONNECTED WITH**
**COMPANY APPLICATION NO. CA (CAA)-39(ND)/2022**

**IN THE MATTER OF SCHEME OF AMALGAMATION:**

**AMONGST**

**ARIHANT LPG PRIVATE LIMITED**

**... Petitioner No.1 /Transferor Company No. 1**

**AND**

**TVL EQUIPMENTS PRIVATE LIMITED**

**... Petitioner No.2 /Transferor Company No. 2**

**WITH**

**TRANS VALVES (INDIA) PRIVATE LIMITED**

**... Petitioner No.3 /Transferee Company**

**AND**

**THEIR RESPECTIVE SHAREHOLDERS AND CREDITORS**

**Order Delivered on: 09.05.2023**

**Section: 230 to 232 of the Companies Act, 2013**

**CORAM:**

**SH. ASHOK KUMAR BHARDWAJ, HON'BLE MEMBER (J)**

**SH. L. N. GUPTA, HON'BLE MEMBER (T)**

**PRESENT:**

| | |
|---|---|
| **For the Petitioner** | **:** Adv. Nikhil Malhotra, CS Chander Kant |
| **For IT Department** | **:** Mr. Sunil Aggarwal, Sr. St. Counsel,<br>Mr. Shivansh B. Pandya, Adv. Utkarsh Tiwari |
| **For the RD** | **:** Adv. Shankari Mishra |
| **For the OL** | **:** Ms. Hemlata Rawat |

## ORDER

On perusal of the record, we find that the Applicants herein could not file/upload on DMS/e-portal of this Tribunal, any report of publication of notice issued by this Tribunal on 14.09.2022. The publication of notice is a statutory requirement in terms of Rule 16(1) of the Companies (Arrangements and Amalgamations) Rules, 2016. Besides, in terms of para 4 of the order dated 14.09.2022, this Tribunal had specifically directed for publication of notice in the newspaper namely, "business standard" in English and Hindi (Delhi Edition).

There being no report regarding the compliance of the aforementioned order, uploaded on DMS/e-portal of this Tribunal, the petition is released from being reserved for orders. Let the same be listed for being spoken to on 09.05.2023.

**Sd/-**
**(L. N. GUPTA)**
**MEMBER (T)**

**Sd/-**
**(ASHOK KUMAR BHARDWAJ)**
**MEMBER (J)**